

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-16

**IWG INTERNATIONAL WOOD GROUP OF SC AND
HONEST TRADING INTERNATIONAL LLC,**
Complainants

v.

DB SCHENKER USA, INC.,
Respondent

JOINT STATUS REPORT AND PROPOSED SCHEDULING ORDER

1. INTRODUCTION

Pursuant to the Federal Maritime Commission (“FMC”) Rules of Practice and Procedure, 46 C.F.R. Part 502, Initial Order dated August 12, 2025, the Parties respectfully submit this Joint Status Report and Proposed Scheduling Order. This report summarizes the current status of the case, identifies the contested issues, and sets forth proposed deadlines for the orderly progression of this proceeding.

2. PROCEDURAL HISTORY

Respondent has filed its Verified Answer and Affirmative Defenses. The pleadings have closed and the parties are preparing to initiate discovery.

3. JURISDICTIONAL STATEMENT

Complainants assert that the Federal Maritime Commission has jurisdiction. Respondent contests jurisdiction on the grounds that the entity named in the Complaint as Respondent, DB Schenker USA, Inc. is neither an OTI or a carrier and thus not subject to the jurisdiction of the Commission. Respondent further contests jurisdiction on the grounds that the claims asserted are merely contractual and/or maritime in nature and do not implicate a violation of the Shipping Act.

4. CLAIMS & DEFENSES SUMMARY

Complainants allege violations involving documentation errors and unreasonable practices. Respondent denies all allegations and asserts multiple affirmative defenses, including, but not limited to, lack of jurisdiction, lack of standing, lack of cognizable

injury or damages and that any injury is the direct result of Complainants or third parties. Respondent also asserts that the claims are barred by the doctrine of unclean hands, as Complainant has a significant outstanding balance owed to Respondent for services rendered without complaint and, upon information and belief, has filed this Complaint (seeking the exact same amount of damages that are owed to Respondent) as a means to avoid such payment obligations.

5. AREAS OF AGREEMENT AND DISPUTE

Complainant believes that discovery is necessary. It is Respondent's position that any documents and information is already in the possession of Complainants. Respondent also refers to its defenses as set forth in paragraph 4 above..

6. DISCOVERY PLAN

The parties propose deadlines for disclosures, written discovery, depositions, expert reports, and motions.

7. PROPOSED SCHEDULING ORDER

The Parties jointly propose the following schedule for the progression of this proceeding:

Event	Deadline
Initial Disclosures	December 2025
Initial Written Discovery Served	December 1, 2025
Complainants' Expert Reports	December 19, 2025
Respondent's Expert Reports	January 19, 2026
Close of all discovery	February 19, 2026
Complainant's Brief	March 19, 2026
Respondent's Brief	April 20, 2026
Complaint's Reply Brief	May 4, 2026
Initial Decision	August 12, 2026

8. SETTLEMENT STATUS

The parties have not discussed settlement but shall do so.

9. ORAL HEARING POSITION

Complainants request an oral hearing; Respondent denies an oral hearing is warranted.

Respectfully submitted,

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